

of the same transaction (*e*), may properly be put in evidence for the purpose of rebutting the presumption. Thus it will not be held an advancement, if, on a grant of copyholds to a father and his son for their lives *successivè*, the father at the same Court surrenders the copyholds to the use of his will (*f*), or obtains a license from the lord to lease for years (*g*), or takes possession by some overt act immediately consequent upon the purchase (*h*), or serves a notice with a view of taking possession, and then waives it and receives the rents, &c. (*i*).

Evidence from parol declaration.—So the father may prove a parol declaration of trust by himself, * either [*176] before or at the time of the purchase, not that it operates by way of declaration of trust (for the Statute of Frauds would interfere to prevent it); but as the trust would result to the father, were it not rebutted by the sonship as a circumstance of evidence, the father may counteract that circumstance by the evidence arising from his parol declaration. Of course the father cannot defeat the advancement by any subsequent declaration of intention (*a*). But his evidence is admissible for the purpose of proving what was the intention at the time (*b*).

607; *Taylor v. Alston*, cited 2 Cox, 96, 1 Watk. Cop. 223; *Redington v. Redington*, 3 Ridg. 177; *Grey v. Grey*, 2 Sw. 594; *Rawleigh's case*, cited Hard. 497; *Baylis v. Newton*, 2 Vern. 28; *Shales v. Shales*, 2 Freem. 252; *Scawin v. Scawin*, 1 Y. & C. C. C. 65; *Christy v. Courtenay*, 13 Beav. 96.

(*e*) *Redington v. Redington*, 3 Ridg. 196, *per* Lord Loughborough; *Jeans v. Cooke*, 24 Beav. 521, *per* M. R.

(*f*) *Prankerd v. Prankerd*, 1 S. & S. 1.

(*g*) *Swift v. Davis*, 8 East, 354. note (*a*).

(*h*) Lord Eldon could scarcely have meant more than this, when he observed, "Possession taken by the father at the time would amount to such evidence." *Murless v. Franklin*, 1 Sw. 17.

(*i*) *Stock v. McAvoy*, 15 L. R. Eq. 55. In this case evidence was given that the father said it should be his son's after his own death, but V. C. Wickens observed, "If the son is a trustee at all, he is wholly a trustee," *ib.* 58.

(*a*) See *Williams v. Williams*, 32 Beav. 370; *Elliot v. Elliot*, 2 Ch. Ca. 231; *Finch v. Finch*, 15 Ves. 51; *Woodman v. Morrel*, 2 Freem. 33; *Birch v. Blaggrave*, Amb. 266; *Gilb. Lex Præt.* 271; *Sidmouth v. Sidmouth*, 2 Beav. 456; *Skeats v. Skeats*, 2 Y. & C. C. C. 9; *Christy v. Courtenay*, 13 Beav. 96; *O'Brien v. Shiel*, 7 I. R. Eq. 255.

(*b*) *Devoy v. Devoy*, 3 Sm. & G. 403.